

22STCV33925 22STCV33925

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Division: Civil Law and Motion

Department: 400

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Case Number: 22STCV33925 Hearing Date: August 20, 2026 Dept: 400

MOTION TO APPROVE

THE SETTLEMENT

The Court

tenders the following tentative decision in the matter Juan Rodriguez v.

Richard Barton Enterprises, Los Angeles County Superior Court case number 22STCV33925,

set for hearing on August 20, 2026. Juan Rodriguez (Plaintiff) moves for an

order approving the Private Attorneys General Act (PAGA) settlement agreement between

him and Richard Barton Enterprises (Defendant), on the grounds that the

settlement is fair, reasonable, and adequate. The

unopposed motion is granted.

A.

Agency Notice Requirement

For settlement approval under PAGA, “[t]he proposed

settlement shall be submitted to the agency at the same time that it is

submitted to the court.” (Lab. Code § 2699, subd. (s)(2).) Plaintiff has presented

proof that he submitted a copy of the proposed settlement to the Labor and

Workforce Development Agency (LWDA) as required. (Bokhour Decl. ¶ 40.)

B.

Legal Standard

“PAGA settlements are subject to trial court review and

approval, ensuring that any negotiated resolution is fair to those affected.” (Williams v. Superior Court (2017) 3

Cal.5th 531, 549.) The trial court must determine that the settlement is fair,

reasonable, and adequate to all concerned. (Reed

v. United Teachers Los Angeles (2012) 208 Cal.App.4th 332, 337 (Reed).)

There is a presumption that the settlement agreement is fair where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the trial court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small. (Reed, supra, 208 Cal.App.4th at 337.) This standard applies in the context of class actions and qui tam actions alike. (See Gov. Code § 12652, subd. (e)(2); see also Iskanian v. CLS Transportation Los Angeles LLC (2014) 59 Cal.4th 348, 382.)

C.

Discussion

Under the proposed settlement agreement (the Agreement), Defendant will pay a maximum sum of \$400,000 (the Gross Settlement Amount), of which \$224,486.29 is the PAGA fund, of which 25% will go to 105 Aggrieved Employees, defined as “all non-exempt hourly employees who worked for Defendant in California at any time during the PAGA Period,” separately defined as “any pay period during which an Aggrieved Employee worked at least one day of the pay period and was not on vacation or a leave of absence for the entire workweek.” (Bokhour Decl., Ex. B.) The Gross Settlement Amount includes attorney fees and costs for Plaintiff’s counsel, and fees and costs for the settlement administrator. (Id. ¶ 12.)

The Court finds that the Agreement is compliant with the Labor Code. Under the Agreement, at least \$224,486.29 of the Gross Settlement Amount will be available for distribution to LWDA and Aggrieved Employees. This amount will be distributed 75% (\$168,364.71) to the LWDA and 25% (\$56,121.57) to the Aggrieved Employees. (Id. ¶ 14.) These percentages do comply with the requirements of Labor Code section 2699, subdivision (m), as the present case was filed before 2024. The Agreement also provides for a service award to Plaintiff of \$15,000, which is separate from the PAGA fund. (Bokhour Decl., Ex. B.) The Court also finds that Plaintiff’s counsel’s attorney’s fees are reasonable. Accordingly, Plaintiff’s motion is granted.

D.

Conclusion

Plaintiff's motion to approve
the PAGA settlement is granted.